

CORRESPONDENCE · 12 FEB 1997

Registered letter McDonald's

TYPE	DATE	PARTIES
Correspondence	12 Feb 1997	From McDonald's France

SUMMARY SHEET

Letter from McDonald's France — Denis Hennequin · 12 February 1997

Overview: registered letter with acknowledgement of receipt sent by Denis Hennequin, of McDonald's France, to Bernard Collorafi (SEBOL SA, Antibes), in reply to his letters of 10 and 31 January 1997 and to a meeting on 8 January 1997.

Key points

Denis Hennequin confirms the allocation of the Vallauris site to Patrick Gilarski, presented as a regional decision based on expansion criteria. He recalls that McDonald's never grants territorial concessions to its franchisees and that its initial commitment covers only the operation of a single restaurant: when several “eligible” partners operate in the same region, territorial boundaries cannot be clearly defined. Responding to Mr Collorafi's concerns about profitability, he states that the difficulties of the restaurant market lead, in specific cases, to a review of fee levels, and announces that Isabelle will shortly offer him new financial terms adapted to the operation of Antibes-Nord. He concludes by wishing him a successful opening for his Antibes-Ouest restaurant.

Significance

A piece of correspondence documenting the refusal to allocate Vallauris to Mr Collorafi and the announcement of a revision of fees, two points at the heart of the subsequent dispute.

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Source: bernardcollorafi.org/en/documents/letter-mcdonalds-collorafi-vallauris-refusal-fees-1997/ — Documentary case file of the lawsuit Bernard Collorafi v. McDonald's France (Antibes, 1987–2002). The original scan is authoritative.